

26AVCP00113 26AVCP00113

County: los-angeles

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Case Number: 26AVCP00113 Hearing Date: July 14, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

In Re the Petition of:

AMBERVERSE, LLC,

Petitioner,

Re:

JAMIE LEVYA,

Transferor and Real Party in

Interest.

Case Number 26AVCP00113

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 14, 2026

Dept. A-14

Judge William H. Forman

I. Background

On May 5, 2026, Petitioner Amberverse, LLC (Petitioner) filed this petition for approval for transfer of structured settlement payment rights as to Payee Jamie Leyva (Levy).

II. Legal Standard

Standard for Transfer of Structured Settlement Payment Rights – Pursuant to Insurance Code section 10137(a): “A transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met:

(a) The transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents

(b) The transfer complies with the requirements of this article, will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5.”

Insurance Code section 10139.5 provides the factors to be considered by the court in determining whether to approve the transfer of a structured settlement.

III. Discussion

Application – Petitioner seeks an order approving the transfer of payment rights pursuant to Insurance Code section 10134, et seq. The Court considers the required factors in turn.

a. Whether Transfer is in the Best Interest of the Payee, Considering the Welfare and Support of the Payee's Dependents

The transfer must be in the best interest of the payee, considering the welfare and support of the payee's dependents. (Ins. Code, § 10139.5, subd. (a)(1).) When determining whether the transfer is fair, reasonable, and in the payee's best interests, the court must consider the totality of the circumstances, including but not limited, to those circumstances listed in Insurance Code section 10139.5, subdivision (b).

The petition provides that Levy became entitled to certain structured settlement payments arising in connection with a personal injury claim for a motor vehicle accident, including 193 monthly payments in the amount of \$3,370 each, beginning on February 1, 2034, and including February 1, 2050. (Petition, ¶1; Levy Decl., ¶ 3.) If approved, Levy will receive a payment of \$105,221.00. (Petition, Ex. B, Ex. 1.) The “obligor” is American General Annuity Service Corporation. (Id., ¶ 3.) The “annuity issuer” who has issued an insurance contract used to fund the structured settlement payments is American General Life Insurance Company. (Id., ¶ 4.)

Levy is a 39 year old married man with two minor dependents with no court-ordered child support obligations. (Levy Decl., ¶¶ 2, 6.) Levy states he is currently employed as a conductor for VNSF Railway, earning an annual salary of approximately \$200,000. (Levy Decl., ¶ 6.)

Levy has completed four previous transfers of his structured settlement payment rights:

(1) on May 22, 2023, in Case No. 23STCP00531, transferring monthly payments of \$3,370 each due from May 1, 2023, to April 1, 2027, whereby Levy received \$120,000;

(2) on January 29, 2024, in Case No. 23STCP04209, transferring monthly payments of \$3,370 each from May 1, 2027 to December 1, 2028 whereby Levy received \$37,500;

(3) on May 29, 2024, in Case No. 24STCP01044, transferring monthly payments of \$3,370 each from January 1, 2029 to January 1, 2030 whereby Levy received \$19,500; and

(4) on April 29, 2025, in Case No. 25STCP00944, transferring monthly payments of \$3,370 each due from February 1, 2030 to January 1, 2034, whereby Levy received \$79,000.

(Levy Decl., ¶ 7.)

Levy seeks to use the money from this petition for important personal and financial needs directly impacting his long-term well-being and stability. (Levy Decl., ¶ 6.1.) Specifically, Levy intends to use these payments to obtain necessary dental treatment to address ongoing oral health issues, to fund the replacement and maintenance of a Nevro spinal cord stimulation device, essential for managing chronic pain and maintenance of his ability to work and function effectively, to consolidate his existing debt in order to reduce his monthly financial strain and improve his overall financial stability, and to reinstate his General Contractor's license, which will allow him to expand his professional qualifications and create additional income opportunities to support his household. (Levy Decl., ¶ 6.1-6.2.)

The Court finds that Insurance Code section 10139.5(a)(1) satisfied.¿

b. Whether the Payee Has Been Advised in Writing by the Transferee to Seek Independent Professional Advice Regarding Transfer and Has Either Received That Advice or Knowingly Waived, in Writing, the Opportunity to Receive That Advice

Petitioner attaches an IPA Waiver signed by Levy, indicating that Petitioner advised Levy to obtain independent legal or financial advice regarding the transaction, that Petitioner would cover up to \$1,500 of the cost of such representation, that Petitioner's accountant, counsel, or actuary may not provide Levy with advice regarding the transaction, and that Petitioner has advised Levy to obtain independent professional advice from a lawyer experienced in tax matters regarding income tax consequences he may face from selling his structured settlement payment rights, but that Petitioner could not provide him with the name of any such professional. (Petition, Ex. C.) The waiver states "I hereby knowingly waive in writing the opportunity to seek and receive such independent professional advice," followed by Levy's signature, dated April 27, 2026.

Further, Levy asserts that he has been advised by Petitioner of his right to seek independent counsel and financial advice in connection with this petition for approval and has been advised that upon his retention of an attorney, licensed actuary, or licensed certified public accountant, Petitioner would pay the fees regardless of the work done and regardless of whether the petition is approved, in an amount not to exceed \$1,500. (Levy Decl., ¶ 13.) Levy states he waives that advice and does not wish to retain an independent advisor. (Levy Decl., ¶ 14.)

Insurance Code section 10139.5(a)(2) is satisfied.¿

c. Whether Transferee Has Complied With Notification, Disclosure Form, and Transfer Agreement Requirements

Petitioner has complied with the notification requirements and has attached a California Transfer Disclosure form that complies with Insurance Code section 10136 and the transfer agreement complies in full with Insurance Code sections 10136 and 10138. (Petition, Ex. D.) Levya states he received these disclosures at least 10 days before he signed the transfer agreement. (Levya Decl., ¶ 12.)

Insurance Code section 10139.5(a)(3) is satisfied.¿

d. Whether Transfer Contravenes Any Applicable Statute or Order of Any Court or Government Authority

The transfer complies with statutory requirements, and there is no evidence that it contravenes the order of any court or other government authority.¿

Insurance Code section 10139.5(a)(4) is satisfied.

e. Whether Payee Understands Terms of Transfer Agreement

Levya declares he understands the terms of the transaction and is entering into the transaction with Petitioner of his own free will and volition, without reservation, duress, or undue influence. (Levya Decl., ¶ 15.)¿

Insurance Code section 10139.5(a)(5) is satisfied.¿

f. Whether Payee Understands and Does Not Wish to Exercise His Right to Cancel the Transfer Agreement

Levya signed the transfer agreement directly under a box containing bolded text stating, in relevant part: “You have the right to cancel this agreement without any cost or obligation until the date the court approves this agreement” and setting forth the manner in which he can cancel. (Petition, Ex. B.)

Levya declares he understands he has a right to cancel the agreement until it is approved by the court and that he does not wish to exercise his right to cancel the agreement. (Levya Decl., ¶ 16.)

Insurance Code section 10139.5(a)(6) is satisfied.

Insurance Code section 10139.5 subd. (b) and (c) provide further factors for the court's consideration, under the totality of the circumstances, in determining whether the proposed transfer should be approved. The Court finds the transfer to be fair and reasonable after considering Levya's declaration regarding his financial situation, age, stated purpose, the terms of the transaction, that the settlement funds were not intended, nor does Levya rely on them, to pay for future medical care and treatment or for necessary living expenses, Levya's income from other sources, including his employment, the discount rate applied, Levya's previous transactions and that no such transactions were ever denied or withdrawn, and all other circumstances delineated in the Petition and Levya's declaration. (Levya Decl., ¶¶ 4-9, 11.)

Accordingly, the petition is granted.

IV. Conclusion

Petitioner Amberverse, LLC's Petition for Approval For Transfer of Structured Settlement Payment Rights Pursuant to Insurance Code Section 10134 et seq. is GRANTED.